

Interpreta-
tion.

3.—(1) In this Act the expression “horticultural produce” means vegetables, fruit, flowers and plants.

(2) For the purposes of this Act, produce consigned for sale shall be deemed to have been consigned for sale on commission unless at or before the sale of the produce—

(a) the salesman has received from the owner or consignor a direction in writing to the contrary; or

(b) the owner or consignor and the salesman have entered into an agreement in writing to the contrary;

and any such agreement may apply either to a particular consignment or generally to all such consignments as may be specified in the agreement.

(3) Where the owner or consignor of any horticultural produce has appointed a person to act as his agent for the purposes of this Act, anything by this Act authorised or required to be done to or by the owner or consignor may be done to or by such agent.

Short title
and extent.

4.—(1) This Act may be cited as the *Horticultural Produce (Sales on Commission) Act, 1926.*

(2) This Act shall not extend to Northern Ireland.

CHAPTER 40.

An Act to confer on Courts in India and other parts of His Majesty's Dominions jurisdiction in certain cases with respect to the dissolution of marriages, the parties whereto are domiciled in England or Scotland, and to validate certain decrees granted for the dissolution of the marriage of persons so domiciled.

[15th December 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subject to the provisions of this Act, a High Court in India to which Part IX. of the Government of India Act applies shall have jurisdiction to make a decree for the dissolution of a marriage, and as incidental thereto to make an order as to damages, alimony or maintenance, custody of children, and costs, where the parties to the marriage are British subjects domiciled in England or in Scotland, in any case where a court in India would have such jurisdiction if the parties to the marriage were domiciled in India :

Divorce jurisdiction of High Courts in India where parties are domiciled in England or Scotland.

Provided that—

- (a) the grounds on which a decree for the dissolution of such a marriage may be granted by any such court shall be those on which such a decree might be granted by the High Court in England according to the law for the time being in force in England ; and
- (b) any such court in exercising such jurisdiction shall act and give relief on principles and rules as nearly as may be conformable to those on which the High Court in England for the time being acts and gives relief ; and
- (c) no such court shall grant any relief under this Act except in cases where the petitioner resides in India at the time of presenting the petition and the place where the parties to the marriage last resided together was in India, or make any decree of dissolution of marriage except where either the marriage was solemnized in India or the adultery or crime complained of was committed in India ; and
- (d) any such court may refuse to entertain a petition in such a case if the petitioner is unable to show that by reason of official duty, poverty or any other sufficient cause, he or she is prevented from taking proceedings in the court of the country in which he or she is domiciled, and the court shall so refuse if it is not satisfied that in the interests of justice it is desirable that the suit should be determined in India.

(2) Any such order for alimony or maintenance or for custody of children shall have effect in India on the making thereof, but save as aforesaid no such decree or order shall have any force or effect either in India or elsewhere unless and until registered in manner herein-after provided.

(3) On production of a certificate purporting to be signed by the proper officer of the High Court in India by which the decree or order is made, the decree or order shall—

- (a) if the parties to the marriage are domiciled in England, be registered in the High Court in England;
- (b) if the parties to the marriage are domiciled in Scotland, be registered in the books of council and session;

and upon such registration shall, as from the date of registration, have the same force and effect, and proceedings may be taken thereunder as if it had been a decree or order made on the date on which it was made by the High Court in India, by the High Court in England or the Court of Session in Scotland, as the case may be, and, in the case of an order, proceedings may be taken for the modification or discharge thereof as if it had been such an order as aforesaid :

Provided that—

- (i) the High Court in England or the Court of Session in Scotland shall not, unless the Court for special reasons sees fit so to do, entertain any application for the modification or discharge of any such order if and so long as the person on whose petition the decree for the dissolution of the marriage was pronounced is resident in India; and
- (ii) where an order for the payment of alimony has been so registered in the books of council and session, the Court of Session shall in addition to any other power have power in the event of any material change of circumstances to discharge or modify such order.

(4) Proceedings before a High Court in India in exercise of the jurisdiction conferred by this Act shall

be conducted in accordance with rules made by the Secretary of State in Council of India with the concurrence of the Lord Chancellor, and those rules shall provide—

- (a) for petitions being heard before a judge or one of two or more judges of the court nominated for the purpose by the chief justice of the court with the approval of the Lord Chancellor;
- (b) for the decree or order made by such a judge being subject to appeal to two judges of the court similarly nominated without prejudice however to any right of ultimate appeal to His Majesty in Council;
- (c) for prohibiting or restricting the exercise of the jurisdiction where proceedings for the dissolution of the marriage have also been instituted in England or Scotland;
- (d) for preventing, in the case of a decree dissolving a marriage between parties domiciled in Scotland, the making of an order for the securing of a gross or annual sum of money;
- (e) for limiting cases in which applications for the modification or discharge of an order may be entertained by the court to cases where at the time the application is made the person on whose petition the decree for the dissolution of the marriage was pronounced is resident in India;
- (f) for prescribing the officer of the Court empowered to give certificates under this Act, and the form of any such certificate;
- (g) for conferring on such official as may be appointed for the purpose within the jurisdiction of each High Court the like right of showing cause why a decree should not be made absolute as is exercisable in England by the King's Proctor.

(5) The decision of a High Court in India, or on an appeal therefrom, as to the domicile of the parties to a marriage shall for the purposes of this Act be binding on all courts in England, Scotland and India.

2.—(1) His Majesty may, by Order in Council, provide for applying the foregoing provisions of this Power to
extend Act
to other

British
possessions.

Act, subject to the necessary modifications, to any part of His Majesty's Dominions other than a self-governing dominion, in like manner as they apply to India, and, in particular, any such Order in Council may determine the court by which the jurisdiction conferred by those provisions is to be exercised.

(2) For the purposes of this section "self-governing dominion" means the Dominion of Canada, the Commonwealth of Australia (which for this purpose shall be deemed to include Papua and Norfolk Island), the Dominion of New Zealand, the Union of South Africa, the Irish Free State, Newfoundland, and the Colony of Southern Rhodesia.

Validity of
certain
decrees.

3. Any decree granted under the Act of the Indian Legislature known as the Indian Divorce Act, 1869, and confirmed or made absolute under the provisions of that Act, for the dissolution of a marriage the parties to which were at the time of the commencement of the proceedings domiciled in England or in Scotland, and any order made by the court in relation to any such decree shall, if the proceedings were commenced before the passing of this Act, be as valid and be deemed always to have been as valid in all respects as though the parties to the marriage had been domiciled in India.

Short title.

4. This Act may be cited as the Indian and Colonial Divorce Jurisdiction Act, 1926.

CHAPTER 41.

An Act to amend the Officers of Royal Naval Reserve Act, 1863. [15th December 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Amendment
of s. 3 of the
principal
Act.
26 & 27
Vict. c. 69.

1. The provisions of the Officers of Royal Naval Reserve Act, 1863 (hereinafter referred to as "the principal Act"), which relate to the pensions and allowances payable to officers to whom that Act applies on disablement and to the dependent relatives of such officers (that is to say, in